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|  | <p>Procedure Before Trial (The Rutter Group 2023) ¶¶ 8:1731, 8:1745 [court has “considerable discretion” to provide relief from the exclusion of expert testimony]; see <i>Bonds v. Roy</i> (1999) 20 Cal.4th 130, 149 [party must move to amend declaration, and it is within trial court’s discretion to grant or deny the motion].)</p> <p>“A motion under subdivision (a) shall be made at a sufficient time in advance of the time limit for the completion of discovery ... to permit the deposition of any expert to whom the motion relates to be taken within that time limit. Under exceptional circumstances, the court may permit the motion to be made at a later time.” (§ 2034.610, subd. (b); see <i>Perry v. Bakewell Hawthorne, LLC</i> (2017) 2 Cal.5th 536, 541 [party should invoke section 2034.610 “as soon as the party discovers the need to submit a declaration by a previously undisclosed expert”].) “The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (§ 2034.610, subd. (c)<sup>2</sup>.)</p> <p>The court shall grant leave to augment or amend an expert witness list or declaration <b>only</b> if all of the following conditions are satisfied:</p> <p>(a) The court has taken into account the extent to which the opposing party has relied on the list of expert witnesses.</p> <p>(b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.</p> <p>(c) The court has determined either of the following:</p> <p>(1) The moving party would not in the exercise of reasonable diligence have determined to call that expert witness or have decided to offer the different or additional testimony of that expert witness.</p> <p>(2) The moving party failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect, and the moving party has done both of the following:</p> |
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<sup>2</sup> Tham Declaration, ¶¶ 10-13; Exhibits 4-5 to Tham Declaration.